

Unofficial 20: Document

APN: 174-21-651

RECORDING REQUESTED BY:
Clear Recon Corp

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mo.

WHEN RECORDED MAIL TO:
Clear Recon Corp
3707 East Southern Avenue
Mesa, AZ 85206
Phone: 866-931-0036

NOTICE OF DEFAULT AND FORECLOSURE SALE

WHEREAS, on 11/25/2009, a certain Mortgage Deed of Trust was executed by DOUGLAS J. FALLON AND MARY M. FALLON, HUSBAND AND WIFE as trustor in favor of WELLS FARGO BANK, N.A. as beneficiary, and was recorded on 11/30/2009, as Instrument No. 20091096349, in the Office of the Recorder of Maricopa County, Arizona; and

WHEREAS, the Mortgage Deed of Trust was insured by the United States Secretary of Housing and Urban Development (the Secretary) pursuant to the National Housing Act for the purpose of providing single family house; and

WHEREAS, the beneficial interest in the Mortgage Deed of Trust is now owned by the Secretary, pursuant to an assignment dated 9/13/2016, recorded on 9/15/2016, as instrument number 20160668578, in the office of Maricopa County, Arizona; and

WHEREAS, a default has been made in the covenants and conditions of the Mortgage Deed of Trust in that the payment due upon the move out and taxes/insurance of the borrower(s) was not made and remains wholly unpaid as of the date of this notice, and no payment has been made sufficient to restore the loan to currency; and

WHEREAS, the entire amount delinquent as of **4/24/2026** is **\$806,733.14**; and

WHEREAS, by virtue of this default, the Secretary has declared the entire amount of the indebtedness secured by the Mortgage Deed of Trust to be immediately due and payable;

NOW THEREFORE, pursuant to powers vested in me by the Single Family Mortgage Foreclosure Act of 1994, 12 U.S.C. 3751 et seq., by 24 CFR part 27, subpart B, and by the Secretary's designation of me as Foreclosure Commissioner, **recorded 11/13/2017, as Instrument No. 20170840779**, notice is hereby given that on **6/3/2026 at 12:00 PM** local time, all real and personal property at or used in connection with the following described premises ("Property") will be sold at public auction to the highest bidder:

Legal Description:

UNIT 12, BUILDING I, INDIAN BEND VILLAGE NO. 4, ACCORDING TO DECLARATION OF HORIZONTAL PROPERTY REGIME RECORDED IN DOCKET 15562, PAGE 417 AND RE-RECORDED IN DOCKET 15588, PAGE 506, AND PLAT RECORDED IN BOOK 236 OF MAPS, PAGE 38, AND AFFIDAVIT OF CORRECTION RECORDED IN DOCKET 15573, PAGE 191, RECORDS OF MARICOPA COUNTY, ARIZONA.

TOGETHER WITH AN INDIVIDUED INTEREST IN THE COMMON ELEMENTS AS SET FORTH IN SAID DECLARATION AND PLAT

MORE ACCURATELY DESCRIBED AS

UNIT 12, BUILDING I, INDIAN BEND VILLAGE NO. 4, ACCORDING TO DECLARATION OF HORIZONTAL PROPERTY REGIME RECORDED IN DOCKET 15562, PAGE 417 AND RE-RECORDED IN DOCKET 15588, PAGE 506, AND PLAT RECORDED IN BOOK 236 OF MAPS, PAGE 38, AND AFFIDAVIT OF CORRECTION RECORDED IN DOCKET 15573, PAGE 191, RECORDS OF MARICOPA COUNTY, ARIZONA.

TOGETHER WITH AN UNDIVIDED INTEREST IN THE COMMON ELEMENTS AS SET FORTH IN SAID DECLARATION AND PLAT

Commonly known as: 6414 N 79TH ST, SCOTTSDALE, AZ 85250

The sale will be held at: AT THE MAIN ENTRANCE OF THE SUPERIOR COURT BUILDING, MARICOPA COUNTY COURTHOUSE, 201 WEST JEFFERSON, PHOENIX, AZ 85003

Per the Secretary of Housing and Urban Development, the estimated opening bid will be **\$815,236.14**. There will be no proration of taxes, rents or other income or liabilities, except that the purchaser will pay, at or before closing, his pro rata share of any real estate taxes that have been paid by the Secretary to the date of the foreclosure sale.

When making their bids, the winning bidders with the exception of the Secretary must submit a deposit totaling ten percent (10%) of the Secretary's estimated bid amount in the form of a certified check or cashier's check made payable to the undersigned Foreclosure Commissioner. Ten percent of the estimated bid amount for this sale is \$81,523.61. A deposit need not accompany each oral bid. If the successful bid is oral, a deposit of \$81,523.61 must be presented before the bidding is closed. The deposit is nonrefundable. The remainder of the purchase price must be delivered within 30 days of the sale or at such other time as the Secretary may determine for good cause shown, time being of the essence. This amount, like the bid deposits, must be delivered in the form of a certified or cashier's check. If the Secretary is the highest bidder, he need not pay the bid amount in cash. The successful bidder will pay all conveying fees, all real estate and other taxes that are due on or after the delivery date of the remainder of the payment and all other costs associated with the transfer of title. At the conclusion of the sale, the deposits of the unsuccessful bidders will be returned to them.

The Secretary may grant an extension of time within which to deliver the remainder of the payment. All extensions will be for 15 day increments for a fee of: \$500.00, paid in advance. The extension fee shall be in the form of a certified or cashiers check made payable to the Secretary of HUD. If the high bidder closes the sale prior to the expiration of any extension period, the unused portion of the extension fee shall be applied toward the amount due.

If the high bidder is unable to close the sale within the required period, or within any extensions of time granted by the Secretary, the high bidder may be required to forfeit the cash deposit or, at the election of the Foreclosure Commissioner after consultation with the HUD representative, will be liable to HUD for any costs incurred as a result of such failure. The Commissioner may, at the direction of the HUD representative, offer the property to the second highest bidder for an amount equal to the highest price offered by that bidder.

There is no right of redemption, or right of possession based upon a right of redemption, in the mortgagor or others subsequent to a foreclosure completed pursuant to the Act. Therefore, the Foreclosure Commissioner will issue a Deed to the purchaser(s) upon receipt of the entire purchase price in accordance with the terms of the sale as provided herein. HUD does not guarantee that the property will be vacant.